

TENTATIVE RULING

Jacobco Ruelas

v.

California Department of Corrections and Rehabilitation, et al.

25CV005192

Plaintiff's Motion for Reconsideration

Hearing Date: August 28, 2026

The motion by Plaintiff Jacobco Ruelas ("Plaintiff") for reconsideration of the Court's June 5, 2026, ruling that sustained, without leave to amend, Defendants'¹ demurrer to the First Amended and Supplemental Petition for Writ of Mandate, Complaint for Declaratory Relief, and Complaint for Damages ("FAC") is **DENIED**. Plaintiff has not identified any new or different fact, circumstance, or law as required by Code of Civil Procedure section 1008. Defendants shall prepare the Proposed Order consistent with this Tentative Ruling.

The Court's ruling on the demurrer required Defendants to prepare and lodge the Proposed Order. To date, Defendants have failed to do so. Defendants must lodge the Proposed Order by September 2, 2026, or else the Court will issue an order to show cause as to why monetary sanctions should not be imposed for Defendants' failure to comply with the Court's order promptly.

Background.

On April 10, 2026, Defendants filed a demurrer to the FAC. Plaintiff filed an opposition to the demurrer. On June 5, this Court issued a tentative ruling that sustained the demurrer without leave to amend.

On June 6, 2026, the demurrer hearing was held, and the Court shared the tentative ruling with Plaintiff. Although the Court denied Plaintiff's continuance request, the Court gave Plaintiff additional time to review the tentative ruling and prepare for oral argument. Plaintiff argued at the hearing and contested the tentative ruling. After considering the parties' written and oral arguments, the Court affirmed its ruling that sustained the demurrer without leave to amend.

Legal Standard.

A party may move for reconsideration of an order within 10 days after service on the party of written notice of the order. [Code Civ. Proc. § 1008, subd. (a).] The statute also requires that any motion for reconsideration be based "upon new or different facts, circumstances, or law" that the Court previously did not consider. [*Id.*; *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.] In addition, the burden under Code of Civil Procedure section

¹ "Defendants" collectively refer to D. Best, Jeffrey Macomber, and the California Department of Corrections and Rehabilitation.

1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” [*Ibid.*; *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833 (finding that the reconsideration statute imposes the special requirement of having to not only show new or different facts, circumstances, or law, but also to “show diligence with a satisfactory explanation for not presenting the new or different information earlier...”); *People v. Safety Nat. Casualty Corp.* (2010) 186 Cal.App.4th 959, 974 (“To merit reconsideration, a party must also provide a satisfactory reason why it was unable to present its “new” evidence at the original hearing.”).] A disagreement with a ruling is not a new fact that will support a grant of reconsideration. [*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.]

If the above statutory requirements are met, reconsideration should be granted. However, a court is not required to change its decision upon reconsideration. [*Corns v. Miller* (1986) 181 Cal.App.3d 195, 202.] Although parties may move for reconsideration only as authorized by Code of Civil Procedure section 1008, the statute “do[es] not limit the court’s ability, on its own motion, to reconsider its prior interim orders so it may correct its own errors.” [*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107.]

Discussion.

Initially, the Court considers the motion for reconsideration timely, as Plaintiff attempted to file it on June 14, 2026. However, the motion is **DENIED** for several reasons.

First, Plaintiff does not present any new or different law. [*New York Times*, 135 Cal.App.4th at 212-213.] Plaintiff referring to, but not identifying, any new law in reply is insufficient. Claims that the Court misapplied the law do not constitute grounds for reconsideration. [*Gilberd*, 32 Cal.App.4th at 1500.]

Second, Plaintiff is mistaken that any alleged procedural irregularities constitute new or different facts or circumstances warranting reconsideration. Specifically, Plaintiff argues that the new facts or circumstances occurred during the demurrer hearing when he told the Court that he properly served the opposition and requested a hearing continuance because he did not receive the reply or tentative ruling. Plaintiff’s request for a continuance is an objection based on lack of oral argument, which is collateral to the merits and not a basis for reconsideration. [*Gilberd*, 32 Cal.App.4th at 1500.]

Beyond that, the Court’s Minute Order for the June 6, 2026, demurrer hearing accurately reflects that the Court trailed the matter to allow Plaintiff an opportunity to review and respond to the reply and tentative ruling. This fact is undisputed. Whether Plaintiff wandered the halls is immaterial. Once the case was recalled, Plaintiff confirmed that he had sufficient time to review the reply and tentative ruling and was ready to present oral argument. Plaintiff argued the merits of the demurrer. After considering all of Plaintiff’s arguments, the Court affirmed the tentative ruling that sustained the demurrer with prejudice. In hindsight, Plaintiff now argues that there were other arguments he would have raised if he had more time to review the reply and tentative ruling. However, all of these arguments were based on facts that existed at the time of the

hearing. Plaintiff's contentions regarding oral argument and whether the hearing should have been continued are not new or different facts or circumstances.

Third, Plaintiff's Proposed Second Amended Complaint reuses the same allegations and exhibits already included in the FAC. All relevant facts were known at the time of the demurrer hearing, and Plaintiff provides no reason for failing to present them sooner. The demurrer raised the issue of timeliness under the Government Claims Act, and Plaintiff acknowledged this in his opposition. The theories of continuing violation and other arguments were available and could have been included in the opposition or at the hearing. Plaintiff's failure to raise these earlier does not change existing facts into "new or different" ones.

Fourth, though the Court is mindful of Plaintiff's pro per status, self-representation does not exempt a litigant from complying with statutory requirements. [*See Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984 ("mere self-representation is not a ground for exceptionally lenient treatment.")]. Nothing indicates Plaintiff was misled or prevented from raising the arguments now offered.

Finally, Plaintiff states he may appeal and wishes to correct perceived abuse of discretion at the June 5, 2026 hearing. This is not a permissible purpose of a reconsideration motion because Code of Civil Procedure section 1008, subdivision (e) forbids reconsideration except on the statutory grounds.

Conclusion.

Because Plaintiff has not identified any new or different fact, circumstance, or law, the Court lacks authority to reconsider its June 5, 2026 ruling under Code of Civil Procedure section 1008. The motion for reconsideration is **DENIED**.

Defendants shall prepare and lodge the Proposed Order for this motion and the demurrer by September 4, 2026.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.